



File No.: EXP202315744

RESOLUTION OF RIGHTS PROCEDURE

Once the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD) have been carried out, the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Erasure against GABINETE DE NEUROCIENCIAS, S.L. (hereinafter, the respondent) without their request having received the legally established response.

The claimant states that on May 10, 2019, they authorized the processing of their personal data by UNIDAD AVANZADA SALUD BUCODENTAL, S.L.P., and GABINETE DE NEUROCIENCIAS S.L., for the use of their image captured in activities and/or interviews related to the activities of EQUIPO B.B.B., which could be published on the company's social media, corporate website, and publications, with the aim of disseminating said activities.

On February 7, 2023, they requested the erasure of the consent granted for the use of their personal image, stating that as of March 30, 2023, their images still appear on the websites of the respondents, GABINETE DE NEUROCIENCIAS, S.L. and UNIDAD AVANZADA SALUD BUCODENTAL, S.L.P.

SECOND: After analyzing the complaint, this Agency concludes:

GABINETE DE NEUROCIENCIAS S.L. has informed:

"(...) The entity wishes to emphasize that at no time has it intended to consciously disregard the request for erasure of the claimant's consent.

Since becoming aware of the facts, all means have been put in place to respond to the same and satisfy the exercise of their right, as well as to provide thorough explanations about what occurred, removing the image from the account that we can manage.

The entity establishes the necessary technical and organizational measures for responding to the Exercise of the rights of the data subjects in accordance with its Complaints and Rights Exercise Procedure of the GDPR, regretting that sometimes problems arise that are beyond the entity's control. All necessary actions have been taken to prevent this from happening again. It became impossible to recover one of the corporate accounts, and the technical support of the social network did not respond, as shown in the document where screenshots of the requests made to the META business support team are included, asking them to recover said account.

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2/6

All personnel of the entity involved in this type of requests strictly follow the internally established management procedures.

The facts that have motivated the complaint that has been communicated to us represent the only incident recorded for not having managed a request for withdrawal of consent in a timely and proper manner for reasons beyond our control.

At all times, actions have been carried out in accordance with internal regulations and always complying with the established legal deadlines applicable. Although the entity has exercised its right to erasure, we are awaiting a response from the entity responsible for reactivating our account in a reasonable time frame.

We want to record that the attempt to recover said account has been carried out on several occasions prior to the exercise of the claimant's right, without any success (...)

Once the reasons presented by the responding party, which are in the file, have been analyzed, this Agency considers that the responsible party has addressed the complaint submitted. For this reason, in accordance with the provisions of Article 65 of the LOPDGDD, the Director of the Spanish Agency for Data Protection AGREES to reject the complaint...

THIRD: The complaining party, disagreeing with the rejection, submits a motion for reconsideration which is resolved favorably and gives rise to the current complaint:

Namely:

“...Consequently, when an interested party exercises the right to erasure of personal data concerning them before a responsible data controller, this entity shall be obliged to erase the personal data without undue delay when the data is no longer necessary for the purposes for which it was collected. Conversely, if the data remains necessary in relation to the purposes for which it was collected, its erasure would not be appropriate, and a motivated response denying the request would be required. In the present case, it has been verified that the responding party responded to the request for erasure exercised by the appealing party, but not all the requested images included in the corporate account could be erased, which is why assistance has been requested from META's technical service. From the above, it is deduced that the incident has not been resolved and, consequently, the request of the appealing party has not been satisfied.

Therefore, in this case, along with the motion for reconsideration, new relevant documentation has been provided regarding the issues raised, and the appeal filed should be upheld...”

FOURTH: On November 7, 2023, the responding party was again notified of the complaint, the motion for reconsideration, and the favorable resolution of the motion, and they were given the opportunity to present any arguments they deemed appropriate within a period of ten working days, summarizing the following arguments:

The responding party continues to assert that it has deleted the images corresponding to YOU TUBE, but that, despite having attempted to do so, as documented, it continues to have problems deleting the image of the claimant in the account that depends on META. Nevertheless, it states that it will continue to attempt this.

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3/6

The respondent party sends a report of its actions to suppress the claimant's data.

“...GABINETE NEUROCIENCIAS has taken the following measures against the company META in recent months, specifically:

- From 07/12/2022 to 28/02/2023, various claims were submitted electronically to the company META, with the aim of deleting an inactive corporate account (TEAM B.B.B.)
- Complaints regarding these profiles have been made from other accounts, without obtaining results.
- As of May 2023, the entity has continued to submit various claims to META companies, without receiving a response. (Document 4 with the actions taken is attached)
- On September 27, 2023, a certified letter was sent to the Data Protection department of Meta, located in Ireland, exercising the right to erasure, without receiving a response. (Document 5)
- On October 16, 2023, a new certified letter was sent to META Ireland, again without receiving any response. (Document 6)
- Finally, as a result of the last request received by this Agency, a certified letter was sent again to Ireland, Department of Privacy of META, exercising the right to erasure of the account for the second time. (Document 7)

Page 5 of 8

Furthermore, a complaint has been filed with this Agency against META for not addressing the exercise of the right to erasure requested on September 27, 2023. (Document 8)

It is noteworthy that prior to the erasure of the account, we have tried by all means, as evidenced in the various documents submitted to this Agency, to rectify the data and access the account to exercise the claimant's right to erasure...”

FIFTH: After examining the document submitted by the respondent party, it is forwarded to the claimant party, so that, within ten working days, they may submit any allegations they deem appropriate. The claimant party has not submitted any allegations.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with these regulations, the controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to address such a request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

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5/6

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes in accordance with Article 89(1), in so far as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims."

V

Conclusion

During the processing of this procedure, the entity being complained against has erased part of what was requested, but not all of it.

According to the entity being complained against, it is making every effort to comply with the right, as evidenced, and has already done so in part. Therefore, we must assess to what extent we can consider this complaint, taking into account that the erasure is not complete due to reasons beyond the control of the entity being complained against, as outlined in the facts.

Finally, this Agency reserves the right to conduct an investigation if deemed appropriate, aside from this resolution regarding the lack of response from META, in which case it would inform the parties in due course.

In light of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO DISMISS the complaint filed by A.A.A. against GABINETE DE NEUROCIENCIAS, S.L.

SECOND: TO NOTIFY this resolution to A.A.A. and to GABINETE DE NEUROCIENCIAS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the

aforementioned Law.

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